



SPONSOR: Rep. Lynn & Sen. Hoffner

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 238

AN ACT TO AMEND TITLE 30 AND TITLE 19 OF THE DELAWARE CODE RELATING TO DISCLOSURE OF INFORMATION BY THE DEPARTMENT OF FINANCE AND THE DEPARTMENT OF LABOR.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 368, Title 30 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows and redesignating accordingly:

3 § 368. Secrecy of returns and information; penalty.

4 (a) Except in accordance with proper judicial order or as otherwise provided by law, it shall be unlawful for any
5 officer or employee of the Department of Finance, or for any other officer or employee of this State who has access to tax
6 returns or information from tax returns under this title (other than Chapters 30 [except §§ 3004 and 3005], 51 and 52) to
7 disclose or make known to any person in any manner the amount of income or any particulars set forth or disclosed in any
8 report or return required under this title (other than Chapters 30 [except §§ 3004 and 3005], 51 and 52) including any copy
9 of any portion of a federal income or estate tax return or report, or any information on a federal return or report which is
10 required to be attached to or included in a state tax return.

11 (b) Except in accordance with a court order associated with a felony criminal investigation, Attorney General
12 approval, or as otherwise provided by law, it is unlawful for any officer or employee of the Department of Finance to
13 disclose or make known to any person in any manner any information relating to citizenship or immigration status that is
14 contained in or attached to a federal or state tax return or other state tax or Department of Finance document.

15 Section 2. Amend Chapter 1, Title 19 of the Delaware Code by making deletions as shown by strike through and
16 insertions as shown by underline as follows:

17 § 118. Disclosure of information.

18 Except in accordance with a court order associated with a felony criminal investigation, Attorney General
19 approval, or as otherwise provided by law, it is unlawful for any officer or employee of the Department of Labor to disclose
20 or make known to any person in any manner any information relating to citizenship or immigration status that is contained
21 in or attached to any Department of Labor document or database. Any violation of this section is a misdemeanor,
22 punishable upon conviction by a fine not to exceed \$1,000, or imprisonment not to exceed 6 months, or both. The Superior
23 Court has exclusive original jurisdiction over such misdemeanor.

SYNOPSIS

Section 1 of this Act prohibits Department of Finance employees from disclosing any information about the citizenship or immigration status of any person that is contained in a tax return, tax document, or Department of Finance document, without Attorney General approval or court order associated with a felony criminal investigation or as otherwise provided by law. It also makes such disclosure a misdemeanor.

Section 2 of this Act prohibits the Department of Labor employees from disclosing information about the citizenship or immigration status of any person that is contained in or attached to any Department of Labor document or database without Attorney General approval or court order associated with a felony criminal investigation or as otherwise provided by law. It also makes such disclosure a misdemeanor.